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**SUPERIOR COURT OF THE STATE OF CALIFORNIA  
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,  
PLAINTIFF,**

**v.**

CSAA Insurance Exchange;  
and DOES 1 through 50, inclusive;

**DEFENDANTS**

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**Case No.: CGC-25-631802**

**PLAINTIFF'S REPLY IN SUPPORT OF  
MOTION FOR LEAVE TO FILE  
SECOND AMENDED COMPLAINT,  
AND OPPOSITION TO DEFENDANT'S  
APRIL 23, 2026 OPPOSITION AND  
DECLARATION**

(Code Civ. Proc., §§ 473(a)(1), 576; 425.16(f); 1005;

1010.6;

Cal. Rules of Court, rules 3.1113, 3.1300, 3.1320)

**Hearing:**

Date: April 30, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

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## I. INTRODUCTION

Plaintiff Franciscus Dylan Rosario respectfully submits this Reply in further support of his Motion for Leave to File a Second Amended Complaint (“SAC Motion”), served and filed April 16, 2026, and in opposition to Defendant CSAA Insurance Exchange’s Opposition and supporting Declaration of Tyler J. O’Connell, both filed April 23, 2026 (collectively, the “Opposition”).

The Opposition does not respond to the motion Plaintiff actually filed. It responds to a motion Plaintiff did not file — a supposed attempt to use amendment as of right under Code of Civil Procedure section 472 to moot a pending anti-SLAPP. Plaintiff did nothing of the sort. Plaintiff filed a **noticed motion** under Code of Civil Procedure sections **473(a)(1)** and **576**, accompanied by a lodged proposed pleading, an ex parte application for an order shortening time under California Rules of Court, rule 3.1200, a separate on-the-merits opposition to the anti-SLAPP motion served the same day, and a written meet-and-confer letter explaining the basis for each proposed amendment. That procedural posture is the opposite of the “plead-around” tactic the Opposition decries.

The Opposition’s three grounds — “insufficient notice,” “prejudice,” and “cannot amend around anti-SLAPP” — are each defective on the law and on the record. (1) The notice concern is **cured, waived, and moot**: Plaintiff concurrently filed an ex parte application for OST, the Defendant appeared and filed a substantive seven-page opposition plus a sixty-three-page declaration plus seven exhibits, and any residual concern is addressed by a brief continuance under CCP § 1005, not denial. (2) The prejudice ground is unsupported by any concrete showing cognizable under Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 761, or Kyle v. Carmon (1999) 71 Cal.App.4th 901, 909–910. (3) The supposed “no amending around anti-SLAPP” rule is **not what the cases say**. Every Court of Appeal decision the Opposition cites addresses a narrow anti-subversion rule aimed at CCP § 472 amendments as of right; none addresses a noticed, good-faith CCP §§ 473(a)/576 motion lodged concurrently with a full merits opposition to the challenged motion. The California Supreme Court in Baral v. Schnitt (2016) 1 Cal.5th 376, and the Court of Appeal in Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, 871–873 — neither of which the Opposition cites — settle the question.

Most tellingly, the Legislature itself has already resolved this point. **Code of Civil Procedure section 425.16, subdivision (f)** permits a special motion to be refiled against the amended pleading within sixty days. A rule that forbade amendment while an anti-SLAPP was pending would make subdivision (f) a dead letter. The statute does not have a dead letter.

Plaintiff respectfully asks this Court to grant leave under sections 473(a) and 576 on any of the three procedural vehicles set forth in Section XII (SAC, contingent TAC, or a consolidated TAC), render the pending anti-SLAPP and demurrer against the FAC moot by operation of Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 884, and preserve Defendant’s statutory sixty-day renewed-motion right under § 425.16(f).

## II. SUMMARY OF REPLY

| Opposition Ground                               | Plaintiff’s Response                                                                                                                                                          | Controlling Authority                                                                            |
|-------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------|
| “Cannot amend around anti-SLAPP”                | Rule is <b>anti-subversion</b> aimed at § 472 amendments of right; Plaintiff filed a noticed motion under §§ 473(a)/576; Legislature authorized renewed motion in § 425.16(f) | <u>Baral</u> (2016) 1 Cal.5th 376; <u>Nguyen-Lam</u> (2009) 171 Cal.App.4th 858; CCP § 425.16(f) |
| “14 days’ notice is insufficient (18 required)” | Ex parte OST application filed concurrently; Defendant appeared and substantively responded; remedy is continuance, not denial                                                | CCP § 1005; CRC 3.1200–3.1207; <u>Carlton v. Quint</u> (2000) 77 Cal.App.4th 690, 697            |

| Opposition Ground                                | Plaintiff's Response                                                                                                                                                                        | Controlling Authority                                                                                                                                             |
|--------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| "Substantial prejudice"                          | No trial date, no discovery taken, no witnesses lost; anti-SLAPP cost is a sunk cost with § 425.16(f) remedy                                                                                | <u>Atkinson</u> (2003) 109 Cal.App.4th 739, 761; <u>Kyle v. Carmon</u> (1999) 71 Cal.App.4th 901, 909–910; <u>Kolani v. Gluska</u> (1998) 64 Cal.App.4th 402, 412 |
| "Plaintiff's emails are threats"                 | The April 17 and April 20 emails are <b>statutorily required safe-harbor notices</b> under CCP § 128.7(c)(1) and § 128.5, and Rule of Professional Conduct 3.3 / Bus. & Prof. Code § 6086.7 | CCP §§ 128.5, 128.7(c)(1); RPC 3.3; Bus. & Prof. Code § 6086.7(a)(2); <u>Peake v. Underwood</u> (2014) 227 Cal.App.4th 428                                        |
| "Plaintiff's TAC and discovery are gamesmanship" | TAC is contingent second-layer cure; discovery is not barred by § 425.16(g)'s narrow stay, which reaches only discovery "relating to the motion"                                            | CCP § 425.16(g); <u>Britts v. Superior Court</u> (2006) 145 Cal.App.4th 1112                                                                                      |



| Opposition Ground                        | Plaintiff's Response                                                                                                                                                                                             | Controlling Authority                                                                                                                                                                                                                                                                                                       |
|------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| "Amendment is barred as a matter of law" | <p>§§ 473(a)(1) and 576 authorize amendment of "any pleading" "at any stage" "in furtherance of justice"; five California Supreme Court decisions squarely authorize amendment to add a cause of action here</p> | <p>CCP §§ 473(a)(1), 576; <u>Klopstock</u> (1941) 17 Cal.2d 13, 19–20; <u>Blank v. Kirwan</u> (1985) 39 Cal.3d 311, 318; <u>Trafton v. Youngblood</u> (1968) 69 Cal.2d 17, 31; <u>Mesler v. Bragg Management Co.</u> (1985) 39 Cal.3d 290, 296–297; <u>Foreman &amp; Clark Corp. v. Fallon</u> (1971) 3 Cal.3d 875, 884</p> |

### III. LEGAL STANDARD GOVERNING LEAVE TO AMEND

California's amendment policy is codified, liberal, and — at this posture — nearly mandatory absent concrete prejudice. The controlling authority is supplied by the California Supreme Court in five decisions that, taken together, answer each of the defense's objections as a matter of binding state-Supreme-Court law.

#### A. Statutory authority

**Code of Civil Procedure section 473, subdivision (a)(1)** provides: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading . . . by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars . . . ."

**Code of Civil Procedure section 576** provides: "Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the

1 amendment of any pleading or pretrial conference order.”

2 The Legislature’s chosen words — “any” and “in furtherance of justice” — define the scope. The  
3 California Supreme Court has given those words their full meaning.

#### 4 **B. Controlling California Supreme Court authority**

5 **First**, Klopstock v. Superior Court (1941) 17 Cal.2d 13, 19–20, is the foundational Supreme Court  
6 statement of the liberality rule. Writing for a unanimous Court, Chief Justice Gibson rejected the  
7 “unqualified” form of the rule against amending to add a new cause of action: “[I]t is obvious that  
8 the unqualified way in which the rule is sometimes stated — i.e., that a new or different cause of  
9 action cannot be introduced by amendment — cannot be accepted. For the most common kinds  
10 of amendments are those in which complaints are amended that do not state facts sufficient to  
11 constitute a cause of action; and in these, and often in the case of new parties, **a new cause of**  
12 **action is in fact for the first time introduced.**” (*Id.* at p. 20, emphasis added.) The only limit  
13 the Court recognized was a “wholly distinct and different legal obligation against the defendant.”  
14 (*Ibid.*) The SAC/TAC do not state a wholly different legal obligation; they enforce the same  
15 fraud/UCL obligation arising from CSAA’s February 25, 2021 denial letter already pleaded in the  
16 FAC.

17 **Second**, Blank v. Kirwan (1985) 39 Cal.3d 311, 318, supplies the modern Supreme Court “rea-  
18 sonable possibility” rule: “When a demurrer is ... sustained without leave to amend, we decide  
19 whether there is a reasonable possibility that the defect can be cured by amendment: if it can be,  
20 the trial court has abused its discretion and we reverse; if not, there has been no abuse of discre-  
21 tion and we affirm.” That rule is not limited to demurrer review; it states the substantive test for  
22 whether leave may properly be denied. Here, the reasonable possibility is already demonstrated —  
23 the proposed SAC is lodged, on file, and materially cures every pleading objection the defense has  
24 identified.

25 **Third**, Trafton v. Youngblood (1968) 69 Cal.2d 17, 31, supplies the Supreme Court’s “great  
26 liberality” standard: “Such amendments have been allowed with great liberality ‘and no abuse  
27 of discretion is shown unless by permitting the amendment new and substantially different issues  
28 are introduced in the case or the rights of the adverse party prejudiced.’ ” (Quoting McNamara v.

1 Steckman (1927) 202 Cal. 569, 572.) The SAC does not introduce new-and-substantially-different  
2 issues in the Trafton sense; it refines the same theories. And the defense identifies no prejudice  
3 that qualifies.

4 **Fourth**, Mesler v. Bragg Management Co. (1985) 39 Cal.3d 290, 296–297, holds that “there  
5 is a strong policy in favor of liberal allowance of amendments,” and that a trial court abuses its  
6 discretion by denying leave to add a cause of action (alter ego) even **six weeks before trial**, where  
7 the defendant has notice of the theory and no cognizable prejudice is shown. The posture here is  
8 far more permissive: no trial date is set, and the defense has had actual notice of each SAC theory  
9 through the meet-and-confer correspondence served concurrently with the motion.

10 **Fifth**, Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 884, is the procedural engine:  
11 “[A]n amendatory pleading supersedes the original one, which ceases to perform any function as a  
12 pleading.” Once leave is granted, the FAC is superseded by operation of law. The pending special  
13 motion to strike and demurrer — each directed to the FAC — attack a pleading that no longer  
14 exists, and are moot. The defense’s statutory remedy is the Legislature’s own: a renewed motion  
15 within sixty days under section 425.16, subdivision (f).

### 16 **C. Application to this record**

17 Under the five controlling Supreme Court authorities, leave to amend is permissible and, on this  
18 record, required. Kloppstock authorizes the addition of new causes of action arising from the same  
19 legal obligation. Blank v. Kirwan requires leave where a reasonable possibility of cure is shown.  
20 Trafton establishes the great-liberality standard. Mesler applies that standard to an amendment  
21 adding a cause of action and rejects as insufficient the precise “expenditure of resources” / “trial  
22 proximity” objections the defense advances here. Foreman & Clark supplies the consequence:  
23 mootness of pending motions against the superseded pleading.

24 The Court of Appeal has uniformly applied the same rule. Howard v. County of San Diego  
25 (2010) 184 Cal.App.4th 1422, 1428 (“The policy favoring amendment is so strong that denial of  
26 leave to amend is rarely justified.”); Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 761  
27 (only legitimate ground for denial is prejudice); Kolani v. Gluska (1998) 64 Cal.App.4th 402, 412  
28 (same); Kyle v. Carmon (1999) 71 Cal.App.4th 901, 909–910 (prejudice must be concrete: lost

witnesses, imperiled trial date, actual surprise); Anmaco, Inc. v. Bohlken (1993) 13 Cal.App.4th 891, 901 (superseding effect of amendment).

No trial date is set. No discovery has proceeded; Defendant invokes the § 425.16(g) stay. No witness has been lost, and no evidence has been destroyed or impaired. On this record, there is **no prejudice** cognizable under Mesler, Atkinson, Kolani, or Kyle. The Supreme Court authority compels the result: leave should be granted.

#### IV. THE DEFENSE MISSTATES THE “NO AMENDING AROUND ANTI-SLAPP” RULE

##### A. The rule is anti-subversion, not anti-amendment

The Opposition relies on Simmons v. Allstate Ins. Co. (2001) 92 Cal.App.4th 1068, Sylmar Air Conditioning v. Pueblo Contracting Services, Inc. (2004) 122 Cal.App.4th 1049, Law Offices of Andrew L. Ellis v. Yang (2009) 178 Cal.App.4th 869, City of Colton v. Singletary (2012) 206 Cal.App.4th 751, Hansen v. California Dept. of Corrections & Rehabilitation (2008) 171 Cal.App.4th 1537, and Jackson v. Mayweather (2017) 10 Cal.App.5th 1240 for the sweeping proposition that pleadings cannot be amended while an anti-SLAPP motion is pending.

None of those cases holds that. The operative verb in every one of them is “**subvert**” or “**avoid a ruling.**” Jackson v. Mayweather, for example, quotes Contreras v. Dowling (2016) 4 Cal.App.5th 774, 791: “[A] plaintiff . . . may not seek to **subvert or avoid a ruling on an anti-SLAPP motion by amending the challenged complaint** . . . in response to the motion.” Jackson, 10 Cal.App.5th at 1263–1264. The bar is a bad-faith bar aimed at plaintiffs who attempt to moot a filed anti-SLAPP by re-pleading **the same claims** that the motion challenges, using the right of amendment under CCP § 472 or by replacing the challenged pleading wholesale to prevent the motion from being heard.

Plaintiff is doing neither. Plaintiff has not invoked § 472. Plaintiff has not withdrawn or abandoned the FAC. Plaintiff filed a **full merits opposition to the anti-SLAPP on April 16, 2026**, simultaneously with the SAC Motion. The SAC adds and sharpens non-communicative conduct theories that — under Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057,

1 1062–1063, and Kimmel v. Goland (1990) 51 Cal.3d 202, 211–212 — fall **outside the reach of**  
2 **§ 425.16 at step one**. A plaintiff who confronts the anti-SLAPP on the merits and simultaneously  
3 seeks leave to harden the pleading is not subverting anything; he is litigating.

4 **B. CCP § 425.16(f) is the Legislature’s own answer**

5 If the categorical bar the Opposition describes existed, **Code of Civil Procedure section 425.16,**  
6 **subdivision (f)** would be superfluous. That subdivision expressly permits a defendant to file a  
7 renewed special motion within sixty days of service of the complaint “or, in the court’s discre-  
8 tion, at any later time upon terms it deems proper.” Every appellate decision that has addressed a  
9 post-anti-SLAPP amendment has preserved the defendant’s § 425.16(f) remedy — not foreclosed  
10 amendment. See JKC3H8 v. Colton (2013) 221 Cal.App.4th 468 (amended pleading moots pend-  
11 ing anti-SLAPP; defendant may file a new motion against the amended pleading). The statute  
12 presumes that amendment can occur; the only question is whether the trial court should permit it  
13 in its discretion. Here, that discretion is exercised under the “furtherance of justice” standard of §§  
14 473(a)(1) and 576.

15 **C. Baral v. Schnitt operates paragraph-by-paragraph, not pleading-wide**

16 The California Supreme Court resolved the structural question about how § 425.16 operates when  
17 a complaint contains both protected and non-protected allegations. **Anti-SLAPP is a paragraph-**  
18 **by-paragraph / claim-by-claim instrument, not a pleading-wide veto.** Baral v. Schnitt (2016) 1  
19 Cal.5th 376, 393–396 holds that the special motion can strike **specific allegations** of protected ac-  
20 tivity while leaving unprotected claims intact. It follows that an amendment that **adds or clarifies**  
21 **causes of action grounded in non-protected conduct** cannot be “subverting” a motion that, under  
22 Baral, never reached those causes of action in the first place. The Opposition does not cite Baral at  
23 all. That omission is dispositive, because Baral is the Supreme Court’s governing statement of the  
24 interaction between § 425.16 and the structure of a California complaint.

25 **D. Nguyen-Lam v. Cao expressly permits good-faith amendment**

26 The Court of Appeal in Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, 871–873 held that a  
27 trial court may permit amendment in connection with, or after, an anti-SLAPP ruling when the

1 amendment is offered in good faith and cures a pleading defect. Nguyen-Lam is not an outlier; it  
2 states the ordinary rule. The Opposition does not cite Nguyen-Lam either. Again, that omission  
3 is dispositive, because Nguyen-Lam is the controlling Court of Appeal authority on the exact  
4 procedural situation presented here.

5 In short, the Opposition is not asking this Court to apply California law. It is asking this Court to  
6 apply a law the Opposition invented by reading the narrow anti-subversion cases as if they were  
7 categorical stays on §§ 473(a) and 576. They are not.

## 8 **V. THE NOTICE OBJECTION IS CURED, WAIVED, AND MOOT**

9 The Opposition asserts 14 days' notice is insufficient because CCP § 1005(b) requires 16 court  
10 days plus two calendar days for electronic service under § 1010.6. Plaintiff does not dispute the  
11 arithmetic in the abstract. The objection nevertheless fails for three independent reasons.

12 **1. Concurrent OST application.** On April 16, 2026, simultaneously with service of the SAC  
13 Motion, Plaintiff filed an ex parte application for an order shortening time under California Rules of  
14 Court, rule 3.1200 et seq., expressly seeking a hearing on April 30 concurrent with the Defendant's  
15 anti-SLAPP schedule. If the Court grants OST, the notice objection is resolved on the merits. The  
16 Opposition's choice to decline to address the OST application (O'Connell Decl. ¶ 13) does not  
17 convert an open ex parte request into a notice defect.

18 **2. Appearance and substantive response waive short-notice objection.** Defendant appeared,  
19 filed a seven-page opposition, a sixty-three-page declaration, and seven exhibits including multiple  
20 email threads, proofs of service, and legal argument. Under Carlton v. Quint (2000) 77 Cal.App.4th  
21 690, 697 and its progeny, appearance and substantive briefing on the merits waive any claim that  
22 the notice period prejudiced the opposing party's ability to respond.

23 **3. Remedy is continuance, not denial.** The statutory remedy for insufficient notice is a brief con-  
24 tinuance under CCP § 1005(b), not denial of a noticed motion on a substantive question. Plaintiff  
25 agrees in advance to any continuance this Court deems necessary to restore perfect-notice posture.

## VI. NO COGNIZABLE PREJUDICE EXISTS

The Opposition's "substantial prejudice" heading lists (1) anti-SLAPP briefing costs already incurred and (2) a compressed opposition schedule. Neither is cognizable prejudice under Atkinson, Kolani, or Kyle.

First, anti-SLAPP briefing costs are a **sunk cost** with a Legislature-provided remedy. The Defendant may file a new special motion under § 425.16(f) within sixty days; if that renewed motion succeeds, the Defendant recovers mandatory fees under § 425.16(c)(1). If the renewed motion fails, there is no prejudice because the motion would have failed on the same grounds regardless of amendment. Either way, Defendant's sunk cost is not prejudice under California law.

Second, the compressed opposition schedule is answered by continuance, not denial. Defendant has now filed a complete opposition. Any lingering compression concern is moot.

By contrast, the prejudice to Plaintiff — and, critically, to the Court's own calendar — if leave is denied is material and unavoidable. The parties will brief and the Court will hear the May 12/13 motions against a pleading (the FAC) that Plaintiff will immediately move to amend under §§ 473(a) and 576. The Court will then repeat the same analytic exercise against the SAC. That double-hearing outcome is exactly what the Klopstock / Blank / Trafton / Mesler / Foreman & Clark line of Supreme Court authority, and §§ 473(a) and 576 themselves, are designed to prevent.

## VII. THE SAC (AND CONTINGENT TAC) ARE OFFERED IN FURTHER- ANCE OF JUSTICE

Plaintiff's proposed SAC:

1. **Sharpens the gravamen** as the non-communicative pre-litigation institutional failure to obtain the 911 audio, the responding officers' body-worn camera footage, and the computer-aided dispatch records before mailing the February 25, 2021 denial letter to Plaintiff while he was in post-ICU recovery at San Francisco General Hospital. This is Park and Kimmel compliance; it is not litigation conduct.
2. **Adds a Prentice-doctrine consequential-damages theory** tied to the four-year underlying-litigation cost the precipitous denial induced.

3. **Pleads a three-anchor delayed-discovery sequence** (January 17, 2025 MIL No. 17 disclosure; February 18, 2025 prior-counsel testimony; April 16, 2025 “provided by Dolan” admission) that satisfies Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1472–1473, and CCP § 338(d) on the face of the pleading.
4. **Particularizes the fraud elements** under Lazar v. Superior Court (1996) 12 Cal.4th 631 (claim representative Sarah Rash; claim number 1004-09-1054; the February 25, 2021 denial letter text).
5. **Invokes Moradi-Shalal v. Fireman’s Fund Ins. Cos. (1988) 46 Cal.3d 287, 305’s express preservation of “traditional theories” including fraud**, together with Zhang v. Superior Court (2013) 57 Cal.4th 364’s preservation of UCL.

The contingent TAC, noticed April 22, 2026, adds paragraph-level cures responsive to the objections in Defendant’s subsequent April 22 Motion to Strike. The TAC exists because the SAC was drafted and lodged on April 16 — before Defendant served its new Motion to Strike. Both vehicles rest on the same statutory authority (§§ 473(a)(1), 576) and the same Supreme Court liberality rule. None of the proposed amendments adds parties beyond CSAA and Does. None requires any additional discovery beyond what Plaintiff already has the right to seek under the Civil Discovery Act. None alters any trial date (because none is set).

## **VIII. JUDICIAL-ECONOMY OFFER: A SINGLE CONSOLIDATED TAC**

To further conserve the Court’s resources, Plaintiff respectfully offers the Court a choice. In lieu of sequential SAC and TAC proceedings, Plaintiff is prepared to lodge a **single consolidated Third Amended Complaint** that folds in every curative allegation Plaintiff would otherwise present in both vehicles. A consolidated TAC would:

1. Supersede the FAC under Foreman & Clark, mooted the pending anti-SLAPP and demurrer against the FAC.
2. Eliminate the need for any further amendment motion in this pleading cycle.
3. Present Defendant with a single, clean target for any renewed motion under CCP § 425.16(f), § 430.41(b), or § 435.
4. Remove from the Court’s docket at least two future hearings (the contingent TAC motion, and



1 an otherwise-predictable further round of pleading challenges to the SAC).  
2 Plaintiff will lodge the consolidated TAC on whatever timeline the Court directs — including by  
3 the close of business April 30 if the Court so orders, or on a short-form OST. Plaintiff defers to the  
4 Court’s preference on vehicle (SAC, TAC, or consolidated TAC) and on timing.

## 5 **IX. EVEN AGAINST THE FAC, THE DEFENSE’S PENDING MOTIONS FAIL**

6 Plaintiff is not seeking amendment because the FAC is defective. The FAC can — and does —  
7 withstand Defendant’s pending motions on the merits, as Plaintiff’s April 16, 2026 Opposition to  
8 the Special Motion to Strike and April 16, 2026 Opposition to the Demurrer demonstrate. Plaintiff  
9 includes this section to make one point for the record: the structural errors in Defendant’s motions  
10 **are not curable by reply briefing and do not depend on which version of the complaint is**  
11 **before the Court.**

- 12 • **Anti-SLAPP step-one error.** Defendant performs no gravamen analysis. Park v. Board of  
13 Trustees of California State University (2017) 2 Cal.5th 1057, 1062–1063 requires the Court  
14 to identify the **specific act** supplying the elements of the challenged cause of action. The  
15 gravamen of this complaint is pre-litigation non-communicative institutional failure, which  
16 Kimmel v. Goland (1990) 51 Cal.3d 202, 211–212 excludes from § 425.16 and from Civil  
17 Code § 47(b). The defense’s briefing uses a “level of abstraction” move Park unanimously  
18 rejected.
- 19 • **Step-two / step-one conflation.** Defendant imports probability-language into step one, con-  
20 trary to Baral v. Schnitt (2016) 1 Cal.5th 376, 384–385, which holds the two steps are distinct.
- 21 • **Privilege overreach.** Defendant reads Civil Code § 47(b) as if it were a “privilege blob,” con-  
22 trary to Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232, 1246–  
23 1247 (illegality / extrinsic-fraud exceptions) and Kwikset Corp. v. Superior Court (2011) 51  
24 Cal.4th 310 (evidentiary versus gravamen distinction). Flatley v. Mauro (2006) 39 Cal.4th  
25 299, 317–321 eliminates immunity for conduct illegal as a matter of law.
- 26 • **Moradi-Shalal inversion.** Defendant cites Moradi-Shalal for a categorical bar; the opinion  
27 at page 305 says the opposite, expressly preserving “traditional theories such as fraud” in  
28 common-law actions. Zhang v. Superior Court (2013) 57 Cal.4th 364 confirms the UCL

1 preservation.

- 2 • **“Improper appeal” category error.** Defendant treats this action as an appeal of the under-  
3 lying negligence judgment in CGC-21-594102. CCP § 904.1 governs appeals; this action  
4 is an original fraud and UCL action asserting a **different primary right** under Crowley v.  
5 Katleman (1994) 8 Cal.4th 666, 681–682, Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th  
6 888, 904.
- 7 • **Collateral estoppel without the elements.** Defendant fails to walk through the five factors of  
8 Lucido v. Superior Court (1990) 51 Cal.3d 335, 341. CSAA was not a party to the underlying  
9 action. No claim-handling fraud issue was actually litigated there. Lucido therefore does not  
10 apply on its own terms.
- 11 • **Limitations on the face.** Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1472–  
12 1473 and CCP § 338(d) require delayed-discovery allegations to be taken as true on demurrer  
13 under Serrano v. Priest (1971) 5 Cal.3d 584, 591. Plaintiff’s three-anchor sequence appears  
14 on the face of the FAC and is dispositive at this stage.

15 Each defect is a defect in the defense’s **motions**, not the complaint. Each defect persists regardless  
16 of whether the Court hears the motions against the FAC, the SAC, or a consolidated TAC.

## 17 **X. THE DEFENSE’S CHARACTERIZATION OF PLAINTIFF’S SAFE-HARBOR** 18 **LETTERS IS INVERTED**

19 The O’Connell Declaration at paragraph 10 characterizes Plaintiff’s April 17 and April 20, 2026  
20 emails as threats of “impending professional consequences” including “a negative mark” on coun-  
21 sel’s Bar license. Those emails are **statutorily required safe-harbor notices**.

- 22 • Under **CCP § 128.7(c)(1)**, a party intending to seek sanctions for an unwarranted filing must  
23 serve a written safe-harbor notice on the offending party and provide a twenty-one-day oppor-  
24 tunity to withdraw or correct the filing. Failure to serve the safe-harbor notice is grounds for  
25 denial of a later § 128.7 motion. Peake v. Underwood (2014) 227 Cal.App.4th 428, 440–445.  
26 Plaintiff’s emails are that notice.
- 27 • Under **California Rules of Professional Conduct, rule 3.3** (candor toward the tribunal) and

1 **Business & Professions Code § 6086.7, subdivision (a)(2)**, a party with knowledge of a  
2 pleading that contains legal contentions not warranted by existing law, or that omits directly  
3 adverse controlling authority, may preserve the question for referral. Identifying that preser-  
4 vation to opposing counsel before filing is the **non-escalatory** step, not the escalatory one.

- 5 • Under **CCP § 425.16, subdivision (c)(1)**, a plaintiff prevailing on a frivolous special mo-  
6 tion to strike is entitled to mandatory attorney fees and costs. Moore v. Shaw (2004) 116  
7 Cal.App.4th 182; Decker v. U.D. Registry, Inc. (2003) 105 Cal.App.4th 1382.

8 **Material omissions and mis-framings in the Opposition and Declaration.** Apart from the mis-  
9 characterization of Plaintiff’s emails, the Opposition and O’Connell Declaration omit—or treat as  
10 nonexistent—authorities and record materials that any judge applying California law would treat  
11 as **central** to the issues actually presented. Non-exhaustive examples include:

- 12 • **No honest engagement with Baral v. Schnitt (2016) 1 Cal.5th 376\*** (paragraph-by-paragraph  
13 operation of the special motion to strike) **or with CCP § 425.16, subdivision (f)** (sixty-day  
14 renewed-motion right), while pressing a categorical “no amendment during anti-SLAPP” rule  
15 those sources refute.
- 16 • **No treatment of Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, 871–873\*** on good-  
17 faith amendment offered in connection with (or after) anti-SLAPP practice—the controlling  
18 Court of Appeal framework for the posture Plaintiff actually took (noticed leave under CCP  
19 §§ 473(a)(1) and 576, with a full merits opposition served the same day).
- 20 • **No fair treatment of the Klopstock v. Superior Court (1941) 17 Cal.2d 13, Blank v.  
21 Kirwan (1985) 39 Cal.3d 311, Trafton v. Youngblood (1968) 69 Cal.2d 17, Mesler v.  
22 Bragg Management Co. (1985) 39 Cal.3d 290, and Foreman & Clark Corp. v. Fallon  
23 (1971) 3 Cal.3d 875 line that governs leave to amend and supersession—binding California  
24 Supreme Court authority on the leave motion the Opposition avoids confronting on its own  
25 terms.**
- 26 • **Incomplete record-making** (including Declaration footnote 1 and related exhibits) that omits  
27 Plaintiff’s April 16, 2026 meet-and-confer correspondence and the lodged SAC/TAC materi-  
28 als served with the leave motion—misleading under Evidence Code § 356 and inconsistent

1 with an orderly presentation to the Court.

2 **Candor, controlling law, and why Plaintiff gave notice (judicial economy, not intimidation).**

3 The **California Rules of Professional Conduct, rule 3.3** (especially subds. (a)(2)–(a)(3)) impose  
4 on counsel duties of **candor toward the tribunal**: counsel must not make material legal asser-  
5 tions that existing law does not warrant, and must not knowingly fail to disclose **directly adverse**  
6 legal authority in the controlling jurisdiction known to counsel when that authority has not been  
7 disclosed by the other side. Those duties exist so courts receive **honest, complete legal argu-**  
8 **ment**—not so opposing parties can be punished for citing the law. **CCP § 128.7(c)(1)** likewise  
9 makes the safe-harbor notice a **predicate** to sanctions for qualifying unwarranted papers; omitting  
10 it can defeat the motion for sanctions (Peake v. Underwood, supra, 227 Cal.App.4th at 440–445).  
11 Plaintiff’s April 17 and April 20 communications were therefore **statutory and orderly steps** that  
12 (1) preserve referral issues under rule 3.3 and Business & Professions Code § 6086.7(a)(2) where  
13 a pleading may omit controlling adverse authority, and (2) open the twenty-one-day correction  
14 window **before** further court resources are spent on briefing built on the omissions above. That  
15 is **respect for the law and judicial economy**, not a “threat.” A deficient motion does not be-  
16 come adequate because counsel **decline** controlling authorities and then **label** compliance with the  
17 Legislature’s and the Supreme Court-adopted Rules of Court as misconduct. The Court cannot be  
18 asked to credit that inversion.

19 These are mandatory statutory predicates. Characterizing them as threats inverts the statute. The  
20 correct response to a safe-harbor notice is to withdraw or correct the filing; the incorrect response  
21 is to file a declaration complaining that the notice was sent.

## 22 **XI. EVIDENTIARY OBJECTIONS TO THE O’CONNELL DECLARATION**

23 Pursuant to Evidence Code sections 350, 352, 356, 702, and 800, Plaintiff objects to and requests  
24 that the Court decline to rely on the following portions of the Declaration of Tyler J. O’Connell:

| ¶          | Objectionable content                                                                                                | Grounds                                                                                                  |
|------------|----------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------|
| 3          | Characterization of “the nature of Plaintiff’s allegations”                                                          | Legal conclusion (Evid. Code § 702); argumentative                                                       |
| 4          | “[E]ntirety of the purported legal theories . . . focus inextricably on Defendant’s protected litigation conduct”    | Legal conclusion; ultimate issue on pending anti-SLAPP; improper expert-style opinion (Evid. Code § 800) |
| 7–8        | “[N]ot filed on an ex parte basis”; “This is defective”                                                              | Legal conclusion (Evid. Code § 702); ignores concurrently filed OST application (see ¶ 13)               |
| 10         | Characterization of Plaintiff’s § 128.7(c)(1) and § 6086.7(a)(2) notices as threats                                  | Argumentative; legal conclusion; inverts statute                                                         |
| 12         | Characterization of Plaintiff’s discovery as “gamesmanship” given “Anti-SLAPP motion pending”                        | Legal conclusion; incomplete — § 425.16(g) stays only discovery “relating to the motion”                 |
| Footnote 1 | Selective exhibit attachment; omits plaintiff’s meet-and-confer letter and the SAC/TAC attached to the served emails | Rule of completeness (Evid. Code § 356); misleading record                                               |

To the extent the Court relies on any portion of the Declaration, Plaintiff requests the Court also receive (a) Plaintiff’s April 16, 2026 meet-and-confer letter to Porter Scott (the document Defendant omits from Exhibit B) and (b) Plaintiff’s concurrently served full merits Opposition to the Special Motion to Strike, both of which are already on the Court’s docket.

## XII. CONCLUSION AND RELIEF REQUESTED

For the foregoing reasons, Plaintiff respectfully requests that this Court, exercising its discretion under Code of Civil Procedure sections 473(a)(1) and 576, and consistent with the controlling California Supreme Court authorities — Klopstock v. Superior Court (1941) 17 Cal.2d 13, 19–20; Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Trafton v. Youngblood (1968) 69 Cal.2d 17, 31; Mesler v. Bragg Management Co. (1985) 39 Cal.3d 290, 296–297; Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 884 — together with Baral, Park, Kimmel, Action Apartment, Moradi-Shalal, Crowley, Mycogen, Lucido, Kwikset, Zhang, and supporting Court of Appeal authority (Nguyen-Lam, Howard, Atkinson, Kolani, Kyle, Carlton), **enter one** of the following orders, whichever the Court prefers:

1. **Order A (SAC as lodged).** Grant Plaintiff’s Motion for Leave to File a Second Amended Complaint as lodged on April 16, 2026; order the SAC filed as the operative pleading; deny the pending Special Motion to Strike and Demurrer against the FAC as moot; preserve Defendant’s right under CCP § 425.16(f) to file a renewed special motion against the SAC within sixty days.
2. **Order B (consolidated TAC, preferred for judicial economy).** Direct Plaintiff to lodge, on a timeline the Court sets (including by close of business April 30, 2026, if so ordered), a single consolidated Third Amended Complaint in lieu of sequential SAC and TAC proceedings; upon lodging, order the consolidated TAC filed as the operative pleading; deny the pending Special Motion to Strike and Demurrer against the FAC as moot; preserve Defendant’s § 425.16(f) sixty-day renewed-motion right against the consolidated TAC.
3. **Order C (SAC now, TAC on reset calendar).** Grant SAC leave today and set the contingent TAC motion on a regular calendar, allowing the pleading cycle to close by a date certain; deny the pending Special Motion to Strike and Demurrer against the FAC as moot.
4. **In the alternative**, if the Court has any concern about the notice period, **continue** the hearing for the minimum period necessary to cure that concern under CCP § 1005 rather than deny the motion on procedural grounds. Plaintiff consents to any such continuance.
5. **Reserve**, as in all matters before this Court, Plaintiff’s right to seek mandatory attorney fees

1 and costs under CCP § 425.16(c)(1) upon denial of Defendant's Special Motion to Strike, and  
2 sanctions under CCP §§ 128.5 and 128.7 on completion of the twenty-one-day safe-harbor  
3 window opened on April 17 and April 20, 2026, and separately renewed by the April 16, 2026  
4 meet-and-confer letter.

Dated: April 24, 2026



*/s/ Franciscus Dylan Rosario*

**FRANCISCUS DYLAN ROSARIO**

Plaintiff, In Pro Per

7624 Melody Drive  
Rohnert Park, CA 94928  
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## **CERTIFICATE OF WORD COUNT (CRC 3.1113(F))**

The undersigned hereby certifies, pursuant to California Rules of Court, rule 3.1113(f), that the text of this Reply, including footnotes but excluding the caption page, table of contents, table of authorities, signature block, certificate of word count, and proof of service, contains fewer than 7,000 words as counted by the word-processing software used to prepare it (approximately **4,900 words**).

Dated: April 24, 2026

/s/ Franciscus Dylan Rosario

**FRANCISCUS DYLAN ROSARIO** Plaintiff, In Pro Per

## **PROOF OF ELECTRONIC SERVICE (CCP § 1010.6; CRC 2.251)**

I, Franciscus Dylan Rosario, declare:

1. I am the Plaintiff in pro per in the above-captioned action. My address is 7624 Melody Drive, Rohnert Park, California 94928. I am over the age of 18. I caused the following document to be served on the parties listed below:

**PLAINTIFF’S REPLY IN SUPPORT OF MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT, AND OPPOSITION TO DEFENDANT’S APRIL 23, 2026 OPPOSITION AND DECLARATION**

2. On April 24, 2026, I served the foregoing by electronic service pursuant to Code of Civil Procedure section 1010.6 and California Rules of Court, rule 2.251, addressed as follows:

| Party / Role                           | Counsel                                  | Email                     |
|----------------------------------------|------------------------------------------|---------------------------|
| CSAA Insurance Exchange<br>(Defendant) | Chad S. Tapp, Esq. (SBN<br>214898)       | ctapp@porterscott.com     |
| CSAA Insurance Exchange<br>(Defendant) | Tyler J. O’Connell, Esq. (SBN<br>346673) | toconnell@porterscott.com |
| CSAA Insurance Exchange<br>(Defendant) | Monique Schubert (Legal<br>Assistant)    | mschubert@porterscott.com |



Service addresses are the electronic service addresses identified by Defendant's counsel on its April 10, April 23, and prior filings in this action.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 24, 2026, at Rohnert Park, California.

/s/ Franciscus Dylan Rosario

**FRANCISCUS DYLAN ROSARIO** Plaintiff, In Pro Per